MECA
EMPLOYERS CONSULTING AGENCY
MAY 2026

NEWSLETTER

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PUBLIC HOLIDAYS:

ARE EMPLOYERS CREATING MORE REPLACEMENT HOLIDAYS THAN THE LAW REQUIRES ?



Not every public holiday is a statutory public holiday. Yet many employers administer them as though they are. This seemingly small misconception often results in replacement holidays being granted as a matter of course, even where the Employment Act 1955 may not require it. The distinction is subtle but important. When properly understood, section 60D may afford employers considerably more discretion over substitution and replacement holidays than many realise.

The current practice can lead to multiple replacement holidays arising throughout the year, particularly where public holidays coincide with rest days, other public holidays or periods of leave. In some calendar years, this may result in extended periods away from work and operational disruptions that employers may not have anticipated.

This article examines whether that outcome is actually required by law. A closer reading of section 60D of the Employment Act 1955 suggests that employers may have greater flexibility than is commonly assumed. What is needed is clear policy on this.



For clarity, substitution or replacement holidays generally arise in two situations:

1. **Holiday overlap situations** - where a public holiday falls on a rest day, another public holiday, annual and sick leave days or certain periods of temporary disablement, resulting in the need to substitute the affected public holiday with another day by law or;

2. **Work on public holiday situations** - where employees who are exempt from statutory public holiday pay are granted a replacement day off in lieu, whether by agreement or company policy, instead of receiving payment for work performed on the public holiday.

This article focuses primarily on the first category.
The starting point is section 60D itself.
The section provides that every employee shall be entitled to eleven paid public holidays in a calendar year.
Of those eleven holidays, five are mandatory:



FIVE MANDATORY PUBLIC HOLIDAYS

- National Day;
- The Birthday of the Yang di-Pertuan Agong;
- The Birthday of the Ruler or Yang di-Pertua Negeri (or Federal Territory Day);
- Workers' Day; and
- Malaysia Day.

Section 60D(1) grants employers the ability to select the remaining six public holidays from the gazetted public holidays applicable for that year. Many employers choose to grant all gazetted public holidays, thereby providing employees with public holidays in excess of the statutory minimum eleven.



Why Does the Distinction Matter?



This distinction is important because the Act repeatedly refers to these eleven statutory holidays only, for the purposes of substitution. It does not refer to every additional public holiday that an employer may voluntarily choose to grant.

Because employers tend to grant all gazetted public holidays in a particular year this can result in employees receiving sixteen, seventeen or even more paid public holidays per calendar year. While employers are free to do so and it is even encouraged as good industrial relations practice, the question is **whether all the additional holidays granted, automatically attract the same obligations for substitution when they fall on an authorised non-working day.**

The writer's view is that the wording of section 60D does not necessarily support such an approach.

Section 60D(1A) requires employers to exhibit a notice before the commencement of each calendar year specifying the **remaining six gazetted public holidays** that employees will be entitled to. Significantly, section 60D repeatedly refers back to the holidays identified in paragraphs (a) and (b) of section 60D(1). It is these holidays that:

(i) may be substituted by agreement where they form part of the six selected public holidays;
(ii) must be replaced where they fall on a rest day or another public holiday; and
(iii) must be replaced where they fall during annual leave, sick leave or certain periods of temporary disablement.



To understand how this works, let us look at the specific scenarios below.

Substitution of Holiday that falls on a Rest Day or other Public Holiday



The proviso to 60D(1) provides that where a public holiday referred to in paragraphs;

- (a) [the eleven minimum public holidays granted] and;
- (b) [any holiday declared under s.8 of the Holidays Act 1951]

falls on a **rest day or another public holiday**, the following working day shall be a paid holiday in substitution.



Substitution of Holiday that falls during Leave

Likewise, section 60D(1B) provides for another day to be granted in substitution of public holidays that fall during a period where the employee is on annual leave, sick leave or certain periods of temporary disablement.

Substitution with Employee Agreement

s60D(1A) requires the employer to exhibit conspicuously:

- at the place of employment
- before the commencement of each calendar year
- a notice specifying the remaining six gazetted public holidays provided for in paragraph (1)(a) [(1)(a) speaks of the 11 statutory holidays]

While the law makes no mention of substitution of the five mandatory holidays, it does allow substitution of the remaining six, **with the employee's agreement**.

The critical point, however, is that these substitution obligations **appear to apply only to the public holidays referred to in paragraphs (a) and/or (b). The section does not expressly extend those obligations to every additional gazetted public holiday voluntarily granted by an employer over and above the eleven**.

The writer's view is therefore that the requirement for substitution obligations under section 60D(1) and its corresponding provisos apply to:

- the five compulsory public holidays;
- the six gazetted public holidays selected by the employer and displayed pursuant to section 60D(1A); and
- any public holiday subsequently declared by the Federal Government under section 8 of the Holidays Act 1951.

The same obligations need not necessarily extend to every additional public holiday voluntarily granted by an employer over and above these statutory minimum requirements.

This means that any public holiday granted in excess of the statutory eleven may arguably be characterised as a contractual benefit rather than a statutory public holiday contemplated by section 60D.

If an employer clearly distinguishes such holidays within its policy framework, there is a persuasive argument that they fall outside the statutory replacement regime.

Accordingly, where one of these additional contractual holidays falls on a rest day, another public holiday, annual leave, sick leave or other authorised absence contemplated by section 60D(1B), no further substitution day may need to be granted.

Equally, if the employer elects to grant a replacement day, there is an argument that it may do so on terms determined by company policy rather than the statutory framework applicable to the eleven public holidays.

How Should Employers Incorporate This into Policy?

Employers who wish to distinguish between statutory public holidays and additional contractual public holidays, and thereby retain greater control over substitution obligations, should consider the following steps:



i. Clearly identify at the beginning of each calendar year **eleven public holidays** that constitute the employee's **statutory entitlement under section 60D**.

ii. Identify any additional public holidays that the company wishes to grant over and above the statutory minimum and clearly state how those holidays will be treated for substitution purposes.

iii. Expressly state how those additional holidays will be treated if they fall on a rest day, another public holiday, annual leave, sick leave or any other period of authorised absence.

For example, the policy may provide that only the eleven statutory public holidays identified and exhibited under section 60D(1A) will attract replacement entitlements where required by law. Any additional public holidays granted by the employer will remain contractual benefits and any replacement day will be granted solely at the company's discretion.

This allows employers to determine at the beginning of the year how such holidays will be treated and may assist in managing situations where multiple public holidays coincide with rest days or with one another. More importantly, it provides clarity for employees while avoiding the creation of replacement obligations that may not be required by statute.

There is presently no direct judicial authority conclusively determining whether the replacement obligations in section 60D extend to every additional public holiday voluntarily granted by an employer.

While the issue has not yet been conclusively determined by the Courts, the repeated references in section 60D to the statutory eleven public holidays and holidays declared under section 8 of the Holidays Act 1951 provide a credible basis for distinguishing those holidays from additional public holidays voluntarily granted by an employer.

The practical takeaway is simple. Employers who grant public holidays in excess of the statutory minimum may wish to distinguish clearly between statutory public holidays and additional contractual public holidays. Doing so may allow employers to limit the operation of the statutory replacement provisions to the holidays contemplated by section 60D while retaining flexibility in relation to any additional holidays granted as a matter of company policy.

MECA EVENTS

Briefings and member sessions for employers.

A quick look at MECA's June 2026 programmes designed to keep employers informed, compliant, and prepared.

THU
11
June 2026

MECA IR SERIES WEBINAR

Difficult Conversations: Addressing Mental Health Concerns While Protecting the Organisation



WED
24
June 2026

MECA MEMBERS' MEETING

Want to Reduce Workplace Disputes? Legal Compliance is Not Enough



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- Practical employer guidance
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Feature Article

Pregnancy Is Protected:

What Every Employer Needs to Know Before Making Employment Decisions

When most employers think about maternity protection, they think about one thing: 98 days of maternity leave.

That is understandable. After all, the extension from 60 days to 98 days was one of the most publicised amendments to the Employment Act 1955.

But focusing solely on the length of maternity leave risks overlooking the far more significant changes that have taken place.

Today's maternity framework is no longer merely about granting leave and paying maternity allowance. It regulates almost every aspect of the employment relationship surrounding pregnancy - from when maternity leave may commence, to when an employee may return to work, to when an employer may lawfully terminate employment, and who bears the burden of proof when a dispute arises.

Perhaps most importantly, the modern maternity framework is best understood as a balancing exercise. While the law affords pregnant employees some of the strongest statutory protections available under Malaysian employment law, it does not render them immune from disciplinary action, performance management or contractual obligations. The challenge for employers lies in distinguishing between decisions driven by legitimate business reasons and decisions that may be perceived as being influenced by pregnancy.

In short, there is much more to Part IX than 98 days.





Pregnancy Protection Begins Before Maternity Leave Starts

Many employers assume that legal protection only begins once maternity leave commences.

That is no longer the case.

Section 41A now makes it an offence to terminate the services of a female employee who is pregnant or suffering from an illness arising out of her pregnancy, except in very limited circumstances.

Those circumstances are:

- wilful breach of a condition of the contract of service;
- misconduct; or
- closure of the employer's business.

This is a significant departure from the previous position where the prohibition was primarily tied to the period during which the employee was entitled to maternity leave.

Today, the protection begins during pregnancy itself.

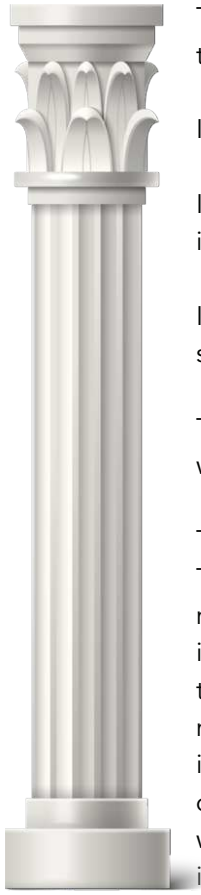
A restructuring exercise, performance management process or termination decision involving a pregnant employee therefore requires considerably greater care and documentation than many employers appreciate.

The Burden Has Shifted



Perhaps the most significant amendment introduced by Parliament is not the prohibition itself, but the burden of proof.

Under section 41A(2), where a pregnant employee's services are terminated, the burden falls on the employer to prove that the termination was not because of the pregnancy or an illness arising from the pregnancy.



This is a remarkable departure from the usual legal position where the party making an allegation bears the burden of proving it.

In practical terms, this means timing matters.

If performance concerns suddenly surface after the employee announces her pregnancy, questions will inevitably be asked.

If a redundancy exercise disproportionately affects a pregnant employee, employers should expect scrutiny.

The legal question is no longer simply whether the employer had a reason to terminate. The question is whether the employer can prove that pregnancy played absolutely no part in the decision.

The importance of this distinction can be seen in ***K Kavitha Krishnan v Aetins Sdn Bhd [2016] 1 ILR 156***. There, the Industrial Court held that the dismissal was without just cause or excuse after finding that the misconduct allegations relied upon by the employer were not proven and that the disciplinary process itself was fundamentally flawed. Significantly, the Court drew the inference that the employer appeared to be attempting to remove the employee before she could proceed on maternity leave and enjoy the maternity benefits that would otherwise have become payable. The Court was particularly critical of what it regarded as an attempt to deprive the employee of maternity benefits through a hurried and defective disciplinary process. The case serves as a cautionary reminder that where disciplinary action coincides with pregnancy or impending maternity leave, employers must be able to demonstrate that the process is genuine, procedurally sound and supported by evidence independent of the employee's pregnancy.



Pregnancy Does Not Mean Immunity



One of the biggest misconceptions surrounding maternity protection is that a pregnant employee cannot be disciplined or terminated.

That is Incorrect.

Pregnancy is protected. Misconduct is not.

- Fraud remains fraud.
- Dishonesty remains dishonesty.
- Wilful breach of contract remains a valid ground for termination.

The legislation itself expressly recognises these exceptions.

This principle is not new. In *LRC (Malaysia) Sdn Bhd v Navamani A/P Selliah [1992] 1 ILR 494* the Industrial Court upheld the dismissal of a pregnant employee who had been continuously absent from work without notifying her employer or providing a satisfactory explanation for her absence. The Court held that pregnancy did not excuse compliance with ordinary contractual obligations relating to attendance and communication. The case illustrates an important principle that remains relevant today: while pregnancy attracts significant statutory protection, it does not relieve an employee from complying with workplace rules and contractual obligations.

Read together, ***K Kavitha Krishnan*** and ***Navamani*** both illustrate the same principle from opposite directions. Pregnancy is protected, but it is not a shield against legitimate disciplinary action. What the law demands is that employers act for genuine reasons, through a fair process, and not because of the pregnancy itself.



Protection May Continue Beyond Maternity Leave



Most employers assume that protection ends once maternity leave expires.

Again, the law is more nuanced.

Section 42 prohibits termination where an employee remains absent from work because of an illness certified by a registered medical practitioner to arise from her pregnancy or confinement and which renders her unfit for work.

This protection may continue for up to ninety days after the expiry of the maternity leave period.

The practical implication is important.

Employers should be slow to initiate termination proceedings against employees who continue to suffer pregnancy-related medical complications after maternity leave has ended.

A proper assessment of the medical evidence should always come first.

Interestingly, the wording of section 41A also raises a broader question. While it is clear that an illness arising out of pregnancy can begin during pregnancy itself, such illnesses may sometimes continue long after confinement. It is unlikely that Parliament intended pregnancy-related protection to continue indefinitely. A sensible reading would therefore suggest that sections 41A and 42 must be read together, with the protection extending through pregnancy, maternity leave and the limited statutory period of 90 days where certified medical complications persist.

Employees Have Obligations Too

Part IX is often discussed as a collection of employee rights.

Far less attention is given to the obligations imposed on employees.

For example:

- An employee who is about to leave employment and knows or has reason to believe she will be confined within four months must notify her employer of her pregnancy.
- An employee is generally required to notify her employer within sixty days before her expected confinement and specify when she intends to commence maternity leave.
- Failure to provide notice may result in the suspension of maternity allowance until notice is given.



- Persistent refusal to undergo medical treatment provided free by the employer and certified as necessary in connection with the pregnancy may result in the forfeiture of up to seven days' maternity allowance.

These provisions serve as a reminder that maternity protection is intended to operate as a balanced framework rather than a one-sided set of obligations imposed solely on employers.

The importance of proper notification can be seen in ***Nasliyana Abdul Samat v Malaysian Airline System Berhad [2018] 3 ILR 109***. There, the employee contended that her dismissal contravened the maternity provisions of the Employment Act. The Industrial Court rejected that argument after finding that she had neither applied for maternity leave nor notified the employer that she was commencing maternity leave prior to her dismissal. As such, the employer was not found to have breached the maternity leave provisions then in force. Nevertheless, the Court ultimately held that the dismissal was without just cause or excuse because the employee was experiencing a difficult pregnancy and a reasonable employer ought to have taken her medical circumstances into account before imposing the ultimate sanction of dismissal. The case serves as a reminder that maternity-related disputes often involve not only questions of statutory entitlement, but also broader considerations of reasonableness and fairness.



The Return-to-Work Puzzle: Must Employers Pay Both Wages and Maternity Allowance?



One of the lesser-known changes introduced in 2022 relates to an employee's ability to return to work during maternity leave.

Prior to the amendment, the circumstances in which a female employee could return to work before the expiry of maternity leave were considerably more limited and largely confined to situations where she was not entitled to paid maternity leave. The amendment now permits a female employee to return to work during the eligible period, with the employer's consent and medical certification, regardless of whether she is entitled to maternity allowance. Section 37 now permits a female employee to resume work during her maternity leave provided:

- she is certified fit to return to work by a registered medical practitioner; and
- the employer consents.

This provision affords employers and employees greater flexibility in managing the return-to-work process.

The amended section 37(1)(aa) may give rise to the unusual possibility that an employee who returns to work during maternity leave remains entitled to maternity allowance whilst also becoming entitled to wages for work performed. Whether the courts will ultimately adopt this interpretation remains to be seen, but employers should be aware that the legislation does not presently provide any mechanism for reducing, suspending, or offsetting maternity allowance in such circumstances.

Feature Article

A Final Thought

The biggest mistake employers make is treating maternity protection as an administrative exercise.

It is not.

It is a **risk management** exercise.

The most difficult maternity disputes rarely arise because an employer intended to discriminate. They arise because a perfectly legitimate business decision was poorly timed, inadequately documented or insufficiently justified.

The law today protects not only maternity leave, but the **broader employment relationship** surrounding pregnancy.

For employers, the question is therefore no longer simply **whether a decision can be made**.



The real question is whether the organisation can **prove that the decision would have been made even if the employee had never been pregnant at all.**

CASE SPOTLIGHT

Dimension Bid (M) Sdn Bhd v Mohd Faizzal Bin Baharulrazi

[2026] CLJU 349



In a significant 2026 decision, the High Court reaffirmed a principle many employers will welcome: transfer remains a management prerogative, and an employee cannot simply refuse to comply while waiting for the Company to consider an appeal.

A. BACKGROUND OF THE CASE

The employee, a Field Engineer based in Kemaman, was instructed to report to the company's Labuan operation base following operational restructuring arising from the COVID-19 downturn. Although he appealed against the transfer, he ultimately failed to report to the new location by the stipulated date. The Company treated this as a serious misconduct and dismissed him. Interestingly, the Industrial Court held that the dismissal was without just cause or excuse and awarded almost RM300,000 in compensation, taking the view that the Company had acted too hastily in dismissing the employee without first considering and responding to his appeal against the transfer order.

The Company subsequently appealed against the Industrial Court's decision to the High Court, which ultimately overturned the finding of dismissal without just cause or excuse.

> *"Transfer remains a management prerogative, and an employee cannot simply refuse to comply while waiting for the Company to consider an appeal."*

B. HIGH COURT'S FINDINGS

The High Court stressed several important principles employers should take note of:

- Transfer is fundamentally a management prerogative, particularly where supported by contractual terms or handbook provisions.
- An employee may appeal against a transfer, but that does not suspend the obligation to comply with the transfer order in the meantime.
- Failure to report to the new workplace amounted to willful disobedience and insubordination.
- The Court also rejected the argument that the Company acted mala fide merely because the dismissal was effected quickly after the failure to report.



CASE SPOTLIGHT...*continued*

Dimension Bid (M) Sdn Bhd v Mohd Faizzal Bin Baharulrazi

Perhaps more controversially, the High Court also took the view that the absence of a formal Show Cause Letter did not, in the circumstances of this case, automatically render the dismissal defective. The Court noted that the employee was already fully aware of the transfer directive, had discussed the matter extensively with management, had submitted an appeal against the transfer, and knowingly chose not to report for duty. In those circumstances, the Court held that no useful purpose would have been served by issuing a further Show Cause Letter.



MECA's Takeaway for Employers

This case is a timely reminder that while transfer remains a recognised management prerogative, employers must still ensure that:

- the transfer is genuine and operationally justifiable;
- there is no element of victimisation or mala fide;
- the transfer does not result in detrimental changes to terms of employment; and
- the contractual right to transfer is clearly documented within employment contracts or handbooks.

> *"At the same time, employees should not be allowed to create a precedent where an appeal effectively becomes a "pause button" against operational instructions. Allowing this too readily can significantly undermine managerial authority and operational flexibility."*

That said, employers should exercise caution before treating every transfer dispute as outright insubordination. The facts here were particularly favourable to the employer:

- the Company had repeatedly communicated with the employee beforehand;
- there were operational reasons linked to COVID-19 restructuring;
- the handbook expressly reserved the transfer prerogative; and
- there was no evidence of mala fide or victimisation.





The broader learning?

A transfer clause in a handbook is not merely administrative 'boilerplate.' In contentious situations, it may become the very clause that determines whether an employer successfully defends a dismissal or faces substantial Industrial Court exposure.

MAY EVENT RECAP

"Knowledge, Conversations..."

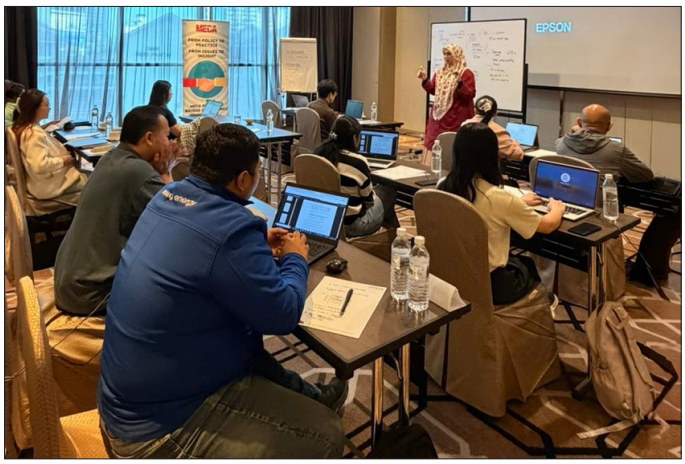


May was anything but quiet for MECA. From public courses and roundtable discussions to in-house training and a flavourful office celebration, the month brought together learning, lively exchanges, and meaningful moments of connection.

MECA began the month with its **Public Course on "The Employment Act 1955: The Essentials"**, held on **4th and 5th May 2026** at the **Connexion Conference and Event Centre**. The two-day session was conducted by MECA's consultants, **Ms. Astiqamah and Ms. Sarmeithaa**, and welcomed **participants** from various industries, comprising both MECA members and non-members.

The course gave participants practical, hands-on knowledge on navigating the twists and turns of the Employment Act 1955. Key areas included compliance essentials such as in Part XII on rest days, hours of work, overtime, public holidays and shift work. Employer obligations and technical processes involving applications to the Director General of Labour for various reasons including wage deductions were canvassed. By the end of the session, participants left not only better informed but well equipped to approach the Employment Act and its application in day-to-day work life with greater confidence.

> *"In short, they walked in as learners and left as Employment Act wizards."*



On **13th May 2026**, MECA continued the momentum with its **May Roundtable, "Power vs Rights: Where Should Employers Draw the Line?"**, also held at the **Connexion Conference and Event Centre**. The session brought together **participants** from various MECA member companies for an engaging and thought-provoking discussion on one of the most delicate areas in employment relations: managing insubordination.

The roundtable gave attendees the opportunity to examine real-life case studies and scenarios involving authority, employee rights, and workplace discipline. The discussion was both riveting and practical, with participants exchanging insights on how employers can respond to insubordination effectively while maintaining fairness, proportionality, and procedural soundness.

MAY EVENT RECAP...*continued*

"...and a Well-Earned Feast"









MECA also conducted an in-house training for **Multimedia University** (MMU), on **21st May 2026**, titled **"Negligence vs Insubordination: Are You Questioning My Authority?"**. The session was attended by lecturers and deans of faculties from the university. Trainers **Ms. Astiqamah** and **Ms. Sarmeithaa** carefully prepared case studies which were then dissected through role-playing exercises. This interactive approach allowed participants to experience realistic workplace conversations and explore how managers can address difficult situations with clarity, control, and professionalism.

To close the month on a lighter yet equally memorable note, MECA hosted its **Office Kongsi Raya Lunch** at **Lankan Cafe** on **22nd May 2026**. The team indulged in tantalising Sri Lankan cuisine, giving the Friday a much-needed burst of flavour. With bellies full and spirits high, the second half of the day may have required extra determination, but the team trudged on faithfully for the sake of its dear members.

> *"Overall, May was a jam-packed month filled with shared knowledge, spirited conversations and a generous serving of good food and camaraderie. As we move into June and approach the half-year mark, MECA looks forward to another month of impactful programmes, meaningful engagement, and continued service to our members."*



MECA

30 YEARS

MECA IR CONVENTION 2026

REFRAMING IR:

WHEN COMPLIANCE IS NOT ENOUGH

WHY LEGALLY SOUND DECISIONS STILL LEAD TO CONFLICT

7 – 8 OCTOBER 2026 | CONNEXION CONFERENCE & EVENT CENTRE



DECISION-MAKING UNDER PRESSURE

High-stakes choices shape real outcomes.

HUMAN BEHAVIOUR & WORKPLACE DYNAMICS

People, not policies, drive perception.

CONSEQUENCES OF MANAGEMENT DECISIONS

High-stakes choices shape real outcomes.

PERCEPTION, FAIRNESS, & TRUST

How you're seen is how you're judged.

EXECUTIVE- LEVEL PROFESSIONALISM

Insights. Perspective. Better outcomes.

EXPERIENCE IR DIFFERENTLY

This October, MECA invites employers to step into a different kind of Industrial Relations convention. Through three cinematic workplace scenarios and one live dramatization, the MECA IR Convention 2026 brings workplace conflict to life in an immersive and practical way. See how decisions unfold, how communication breaks down, and how perceptions harden into disputes. Learn the root causes of workplace conflict, challenge orthodox IR thinking, and discover how employers can prevent issues from escalating into legal battles.

Attend the 2026 MECA IR Convention, and see Industrial Relations differently.



We appreciate your continued trust in **MECA** *as your partner in employer advisory, legal insight, and workplace strategy. We look forward to supporting stronger, more compliant workplaces in the months ahead.*



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